IN THE FOURTH DISTRICT COURT OF APPEAL

STATE OF FLORIDA

Case No. 4D26-2704

SANDY T. FOX, P.A.,
Appellant,

vs.

ANDRES CHAVES,
Appellee.

ON APPEAL FROM THE COUNTY COURT OF THE SEVENTEENTH JUDICIAL CIRCUIT, IN AND FOR BROWARD COUNTY, FLORIDA, L.T. NO. COSO-25-058916

APPELLANT'S INITIAL BRIEF

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STATEMENT OF THE CASE AND OF THE FACTS

This appeal arises from post-judgment garnishment proceedings. Appellant, Sandy T. Fox, P.A., holds a final judgment against Appellee, Andres Chaves, in the amount of $47,030.62, together with accruing statutory interest. (APP. 0004-0005).

In an effort to collect on its Judgment, Appellant served the following writs of garnishment relevant to this appeal:

(1) a writ of garnishment to Wells Fargo Bank, N.A. ("Wells Fargo Writ");

(2) a continuing writ of garnishment to an entity believed to be Appellee's employer, Troutman Pepper Locke ("Troutman Writ").

(APP. 0006-0008).

Appellee filed a Claim of Exemption as to both writs of garnishment, alleging that he is head of household and that the funds in his Wells Fargo account, as well as monies due from Troutman Pepper Locke, are wages subject to exemption under Fla. Stat. § 222.11. (APP. 0009-0014).

On September 2, 2026, Appellant's counsel and Appellee – a practicing attorney representing himself pro se – appeared at an

evidentiary hearing before the Court on Appellee's Claim of Exemption. See September 2, 2026 Claim of Exemption Hearing Transcript at (T. 5:15-25) (APP. 0164). At the time of the September 2, 2026 hearing, Wells Fargo Bank, N.A. had answered the writ of garnishment, stating that $28,271.63 (the "Garnished Funds") was being held in Appellee's bank account (APP. 0015-0018). Troutman Pepper Locke had not yet answered the continuing writ of garnishment at the time of the exemption hearing.

At the exemption hearing, Appellee testified that the Garnished Funds came from his income at Troutman Pepper Locke, a law firm. (T. 18:11-19:4) (APP. 0177-0178). Appellee testified that he is a non-equity partner at Troutman Pepper Locke, and is paid pursuant to a Partnership Agreement with the firm. (T. 9:3-6; 10:6-14) (APP. 0168-1069). Appellee did not produce the partnership agreement with Troutman Pepper Locke as evidence at the hearing. (T. 10:15-20) (APP. 0169).

Appellee's pay stubs from Troutman Pepper Locke, which were admitted into evidence, show that Appellee's income is earned by him pursuant to a "draw;" the pay stubs showed zero hours worked

(T. 18:1-14) (APP. 0177). Also admitted into evidence was Appellee's financial affidavit, filed in June of 2026 in Appellee's on-going Divorce Case[1] (T. 16:1-17:14) (APP. 0175-0176). The financial affidavit likewise showed that Appellee was employed by Troutman Pepper Locke, with a $0.00 monthly pay rate. (APP. 0036-0037). On his financial affidavit, Appellee listed his income as $0.00 for "monthly gross salary or wages," but represented his presently monthly gross income as $34,595.00 from "monthly business income from sources such as self-employment, partnerships, close corporations, and/or independent contracts." (APP. 0037). Appellee did not produce or present into evidence any tax returns filed after 2019. (T. 20:13-21:10) (APP. 0179-0180).

Appellee further testified that he is a divorced father of two; that only his minor son resides with him full time; and, that he provides for all of his son's expenses. (T. 26:13-24; 33:8-12) (APP. 0185; 0192). Appellant's counsel questioned Appellee regarding his Divorce Case, which remains open and pending on the issues of child support. (T. 21:17-22:4) (APP. 0180-0181). The Court entered

[1] Broward County Circuit Court Case No. FMCE2000404 (the "Divorce Case").

into evidence the Parenting Plan signed by Appellee on or around October 23, 2024, which governs the custody arrangement between Appellee and his ex-wife, as to both children, in the Divorce Case. (T. 24:6-18) (APP. 0183). The Parenting Plan was ratified and approved by the Court in his Divorce Case. (T. 22:19-20; 24:6-18) (APP. 0181; 0183). Pursuant to the Parenting Plan, the custody arrangement is fifty-fifty as to both children, and any substantial or permanent changes must be approved by the family court. See (APP. 0144-APP. 0159). Appellee testified that, other than child support, "everything else, custody, the divorce, all that is final." (APP. 180).

Despite the mandates of the Parenting Plan, Appellee testified that he has a "side" arrangement with his ex-wife, where his son lives with him full-time and his daughter lives with his ex-wife full-time. (T. 28:1-8) (APP. 0187). Appellee admitted that there was no court order modifying the fifty-fifty custody arrangement in the Parenting Plan, which remained in effect at the time of the exemption hearing. (T. 28:9-12) (APP. 0187). Appellee's ex-wife did not testify at the hearing and in the Court did not permit Appellant

to fully question Appellee about his ex-wife, sustaining Appellee's objection to that line of questioning. Other than Appellee's testimony, no evidence was presented regarding the "side" time sharing arrangement.

Appellee also testified that he pays $5,200.00 for what he classified as child support. Pursuant to Appellee's testimony, there is no court order for the payment of this support, and the sum was decided upon by Appellee and his ex-wife and is intended to cover school tuition for the children. However, the Wells Fargo bank statements show only three payments to his ex-wife for "University School" and they are as follows: Zelle payment of $3,153.31 on June 5, 2026; Zelle payment of $3,152 on July 9, 2026; Zelle payment of $5,255.52 on August 5, 2026 (APP. 64-76). No further evidence was submitted regarding the alleged child support; no further evidence was submitted regarding the overall expenses for a dependent and the payment thereof; and no further evidence was submitted regarding whether the dependents would become public charges without Appellee's support.

At the conclusion of the evidence, Appellant argued that Appellee failed to meet his burden of demonstrating that the Garnished Funds in his Wells Fargo account qualify as wages, subject to a head of family exemption under Fla. Stat. § 222.11. Specifically, Appellee failed to produce the Partnership Agreement at the exemption hearing, which governs Appellee's employment/partnership with Troutman Pepper Locke. (T. 41:22-42:25) (APP. 0200-0201). The contents of the Partnership Agreement would show whether the Garnished Funds are salary or wages subject to an exemption under Fla. Stat. § 222.11. Appellant further argued that Appellee did not meet the burden of proving that he provides more than 50% of support of a dependent.

After hearing the testimony of Appellee and the arguments of both Parties, the Court stated that it was granting Appellee's Claim of Exemption. The Court found that Appellee was entitled to a head of family exemption under Fla. Stat. § 222.11, and that the monies deposited into Appellee's Wells Fargo account were wages subject to the exemption. (T. 47:3-12) (APP. 0206). However, upon pronouncing its oral ruling, the Court did note that because

Troutman Pepper Locke had not yet answered the continuing writ of garnishment requiring them to identify whether they are indebted to Appellee by reason of salary or wages, that there could potentially be a basis for Appellant to move to revisit the Court's Order after the filing of Troutman Pepper Locke's answer. (T. 47:10-22) (APP. 0206).

Shortly after the hearing, and contrary to its oral pronouncements, the Court entered its written order which found that Appellee is entitled to the Claim of Exemption, dissolving all writs of garnishment, and ordering that all monies held by garnishees be immediately returned to Appellee. (APP. 0019-0020).

On September 4, 2026, Appellant filed a Motion for Reconsideration, and a Notice of Appeal in the Trial Court, thereby initiating the instant Appeal in this Court. (APP. 0021-0029). Appellant's Motion for Reconsideration in the Trial Court was denied by written order on September 10, 2026. (APP. 0032-0033).

SUMMARY OF ARGUMENT

This Court should reverse the Trial Court's Order Granting Appellee's Claim of Exemption because Appellee failed to meet his required burden of demonstrating entitlement to the head of household exemption. Appellee's Parenting Plan, which has been ratified by the Court in the Divorce Case, contradicts his testimony that his child resides with him full time, and no further evidence was submitted to support Appellee's claims; alternatively, Appellee should not be permitted to take advantage of his violation of a court-ordered Parenting Plan, which is contrary to public policy. The Court's findings that Appellee provides more than one half of the support for a dependent are not supported by competent, substantial evidence.

For the purpose of this appeal, Appellant is not challenging the Court's findings that compensation from Troutman Pepper Locke constitutes wages.

STANDARD OF REVIEW

"The classification of monies sought in a garnishment proceeding is a question of statutory interpretation that is reviewed

de novo." *Hancock Whitney Bank v. Adams*, 288 So. 3d 759, 761 (Fla. 1st DCA 2020) (quoting *Kane v. Stewart Tilghman Fox & Bianchi, P.A.*, 197 So. 3d 137, 141 (Fla. 4th DCA 2016)). However, "[a]ny of the trial court's findings of fact are reviewed under the competent substantial evidence standard of review." *Young v. Levy*, 140 So. 3d 1109, 1111 (Fla. 4th DCA 2014) (internal citation and quotation omitted). Substantial evidence is "such evidence as will establish a substantial basis of fact from which the fact at issue can be reasonably inferred." *De Groot v. Sheffield*, 95 So. 2d 912, 916 (Fla. 1957).

The claimant bears the burden of proving entitlement to a claimed garnishment exemption. See *Hancock*, 288 So. 3d at 761 (quoting *Kane*, 197 So. 3d at 141). See also *Cadle Co. v. G & G Assoc.*, 757 So. 2d 1278, 1279 (Fla. 4th DCA 2000). Whether that burden was met must be determined from the evidence concerning both the claimant's status and the nature of the property claimed as exempt.

LEGAL ARGUMENT

I. APPELLEE CANNOT CLAIM HEAD OF HOUSEHOLD WHEN THE CLAIM IS BASED ON HIS DIRECT VIOLATION OF A COURT-ORDERED PARENTING PLAN

Appellee should not be permitted to avail himself of the protections of Fla. Stat. § 222.11, when the exemption arises from Appellee's direct violation of a court-ordered Parenting Plan. In order for Appellee's earnings to be protected, Appellee has to prove that he provides more than one-half of the support for a child or other dependent. Fla. Stat. § 222.11(1)(c). Appellee's claim of exemption rests solely on his testimony that has full custody of his minor child. However, it cannot be ignored Appellee's custody of his minor child is a direct violation of the court-ordered Parenting Plan ratified in his on-going Divorce Case.

The rule that exemptions are construed in the debtor's favor does not require the court to credit a status to Appellee which he created by disobeying a court order. See e.g. *Perry v. Turner*, 365 So. 3d 1222, 1224 (Fla. 2d DCA 2023) ("It is a fundamental principle of equity that no one shall be permitted to profit from his own fraud or wrongdoing[.]") (internal citation and quotation

omitted). See also, *Cabrerizo v. Fortune Int'l Realty*, 760 So. 2d 228 (Fla. 3d DCA 2000) ("An equitable principle widely upheld is that no one shall be permitted to profit by his own fraud, or take advantage of his own wrong[.]") (internal citation and quotation omitted).[2]

The Second District Court of Appeal's decision in *Perry v. Turner*, 365 So. 3d 1222, is particularly instructive. In *Perry*, the parties were engaged in a long term relationship. The appellee sued appellant to evict him from the home where the two had resided, which was titled in appellee's name. Appellant then filed a counterclaim against the appellee, asserting to recoup the funds and assets he had transferred to appellee while they were dating. In response, appellee asserted defenses of unclean hands and in pari delicto to the counterclaim – alleging that appellant was barred from bringing the counterclaim because he made those transfers to appellee to evade creditors including his ex-wife, to whom he owed child support. Ultimately, the Second DCA affirmed the trial court's decision entering final judgment for appellee, finding that "an

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[2] Moreover, reflecting this principle, Fla. Stat. § 222.29, which addresses exemptions, specifically includes a prohibition on exemptions that result from unclean hands through fraudulent transfers or conveyance.

agreement offensive to public policy is void and enforceable if the parties to such an agreement are in pari delicto," and "relief will be refused in the courts because of public interest[.]" *Perry*, 365 So. 3d at 1225 (internal citation and quotation omitted).

Appellee's head of household exemption is based on his claim that his son resides with him full-time, and therefore he pays for all of his son's expenses. (T. 28:5-8; 33:8-12) (APP. 0187; 0192). However, the Parenting Plan requires Appellee and his ex-wife to split timesharing fifty-fifty, as to both children. (T. 24:9-18) (APP. 0183; 145-159). Although Section 10.1 of the plan provides that the parties may agree, in writing, to minor changes to the Parenting Plan without court intervention (APP. 156), a side arrangement between Appellee and his ex-wife to split two siblings, between two households, where each parent takes full custody of one child, is hardly a minor change. The purported side agreement between Appellee and his ex-wife is a substantial change, which, according to Section 10.2 of the Parenting Plan, requires Court approval (APP. 156). It is undisputed that no such court approval was requested and/or granted. (APP. 186-187). Neither the law nor public policy

permit Appellee to avail himself of the protections of Fla. Stat. § 222.11 when the basis for the exemption is an illegal, and probably harmful, violation of a court ratified Parenting Plan.

A parenting plan under Chapter 61 of the Florida Statutes is a court order allocating parental responsibility and time-sharing according to the child's best interests. Pursuant to Fla. Stat. § 61.13, "the court shall determine all matters relating to parenting and time-sharing of each minor child of the parties in accordance with the best interests of the child and in accordance with the Uniform Child Custody Jurisdiction and Enforcement Act, except that modification of a parenting plan and time-sharing schedule requires a showing of a substantial and material change of circumstances." Fla. Stat. § 61.13(2)(c)(emphasis added).

Section 61.13(2) further provides that:

> It is the public policy of this State that each minor child has frequent and continuing contact with both parents after the parents separate or the marriage of the parties is dissolved and to encourage parents to share the rights and responsibilities, and joys, of childrearing.
> Unless otherwise provided in this section or agreed to by the parties, there is a rebuttable presumption that equal time-sharing of a minor child is in the best interests of the minor child. To rebut this presumption, a party must prove by a preponderance of the evidence that equal

> time-sharing is not in the best interests of the minor child. Except when a time-sharing schedule is agreed to by the parties and approved by the court, the court must evaluate all of the factors set forth in subsection (3) and make specific written findings of fact when creating or modifying a time-sharing schedule.

Fla. Stat. § 61.13(2)(c)(1)(emphasis added).

Therefore, while Florida court will honor agreements between divorcing parties, "[t]he best interests of the child takes predominance over any agreement between the parents and must be independently determined by the trial court." *Vinson v. Vinson*, 282 So. 3d 122, 135 (Fla. 1st DCA 2019), quoting *Puglisi v. Puglisi*, 135 So. 3d 1146, 1148 (Fla. 5th DCA 2014). The "trial court's responsibility to the child cannot be abdicated to any parent [or to] any expert," and "a court is not bound by any agreement between parents." *Lane v. Lane*, 599 So. 2d 218, 219 (Fla. 4th DCA 1992). See also, *Frazier v. Frazier*, 109 Fla. 164, 170, 147 So. 464, 466 (1933):

> it is not illegal for parents who have separated, to enter into a contract or stipulation with each other for the custody and maintenance of their child, but that such contract of stipulation is always subject to the acceptance and approval of the court, which should not recognize any such contract, unless it is one which insures the proper care and maintenance of the child.

Compliance with court imposed parenting plans is mandatory, and violations of same carry with it significant consequences, including imposition of contempt and other monetary sanctions, as well as criminal penalties in certain instances. Fla. Stat. § 61.13(4)(c); see also Fla. Stat. § 787.03.[3]

Here, Appellee's arrangement with his ex-wife is not only a violation of the Parenting Plan, but it is a violation of Florida law, from which Appellee should not be permitted to benefit. Specifically, the side arrangement between Appellee and his ex-wife, wherein they each take custody of one child, is contrary to Florida's policy and presumption of equal time sharing, which can only be rebutted by the court's evaluation of various factors. It remains unclear what time-sharing, if any, still exists between the other sibling and the "non-custodial" parent.

Appellee's side arrangement is a substantial change to the Parenting Plan and requires court approval, which was never obtained. The ability to modify equal time sharing rests solely with the Court, and will only be done upon an evaluation of the best interest of the child, which did not occur in Appellee's Divorce Case.

In fact, such a drastic arrangement would likely not be approved by a Florida court because "children in a family should not be separated from each other and distributed about in different homes, except for the most compelling cause." *Arons v. Arons*, 94 So. 2d 849, 853 (Fla. 1957) (order awarding custody of the oldest child to appellee father was reversed on the ground that no compelling reason justified separating the children into different homes). As explained by the Florida Supreme Court in *Arons*,

> while brothers and sisters may not have a legal right to remain together, to share each others lives, and to grow up together, certainly they have a natural right to do so. Justice requires that society exercise its moral duty to insure that children in a family enjoy this right until such time as absolute necessity and the welfare of the children, itself, requires their separation. *Id.*

Permitting Appellee to claim protection under head of household that arise due to his failure to abide by the Parenting Plan would create an absurd results: the same conduct the family court is obligated to correct would earn Appellee a financial benefit in these proceedings. The purpose of the section 222.11 is to protect a family relationship that the law recognizes. Here, the Divorce Court has already decided the custody and care of

Appellee's children (both of them). To permit the Appellee to take advantage of his violation of the court's decree would give every judgment debtor in a custody dispute a direct incentive to disobey a parenting plan, while penalizing the child by the lost time-sharing.

As such, the Court's Order Dissolving the Writs should be reversed and Appellant's claim of exemption denied.

II. APPELLEE FAILED TO MEET HIS BURDEN OF DEMONSTRATING ENTITLEMENT TO A CLAIM OF EXEMPTION, AND THE CLAIM IS NOT SUPPORTED BY COMPETENT SUBSTANTIAL EVIDENCE

Competent and substantial evidence does not support a head of household exemption in favor of the Appellee in this case. "Whether an individual is a head of family is a factual question to be resolved based on the totality of the circumstances." *In re Stevenson*, 374 B.R. 891 (Bankr. M.D. Fla. Aug. 30, 2007) (citation omitted). The Debtor has the burden of proving entitlement of the exemption. *Id.*

In *Stevenson*, the court found that the Debtor failed to meet his burden of proving the exemption where the record was devoid of any evidence that the amount paid in support is actually more than

half the amount required to support the dependent, and the Debtor failed to show that the sums alleged to be support were regularly paid. 374 B.R. at 895. The Court also relied on Debtor's various omissions and misstatements to conclude that his testimony "lacked sufficient persuasiveness to carry the ultimate burden of persuasion to overcome the evidence in support of the objection to the exemption." *Id.*

Similar, in *Brandt v. Magnificent Quality Florals Corp.*, 2013 U.S. Dist. LEXIS 44637 (S.D. Fla. Mar. 28, 2013), the Court rejected the Debtor's argument that his income should be viewed as providing more than one-half of the support for one child, rather then viewing the household as a whole, with two children. *Id.* at 13 (emphasis added). In rejecting this argument, the Court reasoned:

> However, if Mr. Sanchez's argument was adopted, nearly every parent who earned less than the other parent could claim "head of family" exemption, so long as there was more than one child in the household. Taken to its logical extreme, a household with five children and two parents who commingled funds, where one parent earned twice as much as the other parent, would be able to designate the support of four of the five children to one parent, and the support for the one remaining child to the lower-earning parent, and thus have two "head of family" designations for purposes of the exemption. *Id*

In evaluating all the circumstances, the court in *Brandt* concluded that it was impossible to tell from the testimony and documentary evidence what each parent contributed, particularly where the Debtor's spouse earned more money.

While the head of family exemption is to be liberally construed in favor of the debtor, the exemption should not be "used as a sword merely to defeat the claims of creditors." *Brandt*, 2013 U.S. Dist. LEXIS 44637, *12 (S.D. Fla. Mar. 28, 2013) (internal quotations and citation omitted). Rather, the exemption is intended to "preserve the home and shelter for the family, so as to prevent the family from becoming a public charge." *Id.*

"A person qualifies as a dependent under Fla. Stat. § 222.11 if that person's income is insufficient to sustain him or her without the support of the person claiming him or her as a dependent." *In re Beckmann*, 2000 Bankr. LEXIS 1991, *7 (Bankr. S.D. Fla. June 30, 2000) (internal citation omitted). "[S]howing actual dependency is the more important factor, rather than the mere existence of some financial support." *In re Holland*, 2017 Bankr. LEXIS 4209, *8 (Bankr. S. D. Fla. Apr. 10, 2017)(providing more than half of the

family's total support is not what the statute requires; despite earning marginally more than his spouse, Debtor is not head of household because the wife would not become an object of charity without him).[4]

The court in *Beckmann* found that the Debtor cannot claim his spouse as a dependent because the spouse's income is sufficient to sustain her without the Debtor's support; the spouse's income and assets precluded her from becoming a public charge and therefore Debtor did not qualify as head of family. 2000 Bankr. LEXIS 1991, *7. The court reasoned that even though Debtor paid all the household expenses, "support is not determinative of who is the head of family." *Id.* The parties cannot stipulate as to "family headship" and permitting the Debtor to claim his spouse as a dependent would permit the Debtor to use exemption as a sword to defeat claims of creditors. *Id* at 8.

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[4] This bankruptcy case is cited because it evaluates and applies Fla. Stat. § 222.11, which is the statute at issue in this case. However, under bankruptcy law, the burden is on the creditor as the objecting party, rather than the debtor, to establish that the debtor is not entitled to a claim of exemption.

In the case below, Appellee failed to present any evidence relating to the total financial need of the child or children he claims as dependents, and failed to specify what Appellee pays for, other than school tuition. There was no evidence presented related to the support provided by the ex-wife (other than the ex-wife's ability to fully support the daughter), and the record is devoid of any evidence that would show that Appellee's children would become public charges without his support. In other words, Appellee failed to show that the children are dependent on him, which is the pertinent inquiry when assessing head of household under Fla. Stat. § 222.11. (T. 32:12-14) (APP. 0191). When Appellant's counsel attempted to question Appellee regarding his ex-wife and whether she is employed, the Court sustained Appellee's objection to such testimony despite it being directly relevant to Appellee's claim and whether Appellee's children would become a "public charge" if the Court denied the claim of exemption. (T. 32:15-25) (APP. 0191); see also *Brandt*, 2013 U.S. Dist. LEXIS 44637 at *12.

The limited evidence submitted by Appellee – his testimony that his son resides with him full time in violation of the court

ordered parenting plan – cannot qualify Appellee as head of household for reasons already stated above. But, even if the arrangement was lawful, parties cannot "split" their children in order to each claim head of household, as that would only permit debtors to use the exemption as a sword. Nor does Appellee's tuition payment for private school meet the burden to show family headship. In a worst case scenario, without Appellee's tuition payments, the children would attend public school, not become public charges. And, Appellee testified that prior to May 2026, the children did, in fact, attend public school (APP. 0190).

Appellee did not meet his burden of showing his entitlement to a head of household exemption, and the trial court's findings that Appellee is head of household is not supported by competent substantial evidence. As such, the Court's Order Dissolving the Writs should be reversed and Appellant's claim of exemption denied.

CONCLUSION

At the claim of exemption hearing, Appellee bore the burden of proving his entitlement to the claim of exemption. Appellee asserted a head of household exemption based on his testimony that he supports his minor son, who resides with him full time, in violation of the agreed parenting plan in his Divorce Case. As a matter of law and public policy, Appellee cannot be permitted to claim protections of Chapter 222 based on conduct that is in direct violation of an active family court order, which affects the best interest of the very child the Appellee claims as his dependent. Appellee's claim of exemption is not supported by competent substantial evidence as the claims is based solely on illegal conduct and the payment of private school tuition, which does not demonstrate that type of dependency required by law.

For the foregoing reasons and those otherwise stated herein, Appellant respectfully requests that the Court reverse the lower court's ruling, reverse the dissolution of the writs of garnishment, and deny Appellee's Claim of Exemption.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was sent via the Florida eFiling Portal on October 16, 2026, to:

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By: /s/ Rachel Miller
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CERTIFICATE OF COMPLIANCE

The foregoing complies with the font and word count requirements of Fla. R. App. P. 9.045 & 9.210. It is typed in Bookman Old Style, 14-point font and does not exceed 13,000 words.

By: /s/ Rachel Miller
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